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U.S. DISTRICT COURT E.D.N.Y.

★ AUG 26 2010 ★

**BROOKLYN OFFICE**

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

-----X  
T.S., an infant under 18 years of age represented herein by his  
natural guardian ALICE WILSON,

**CV 10 - 2017** ECF Case

10 Civ.

Plaintiff,

vs.

**COMPLAINT**

THE CITY OF NEW YORK, POLICE SERGEANT  
GEORGE ASTRAS, BADGE # 177, POLICE  
OFFICER PONZI, BADGE # 21249 and POLICE  
OFFICER JOHN DOE (names and numbers of whom  
are unknown at present and other unidentified members  
of the New York City Police Department),

**JURY TRIAL  
DEMANDED**  
**GLEESON, J.**

Defendants.  
-----X

**DO NOT FILE**

**PRELIMINARY STATEMENT**

1. This is an action to recover money damages arising out of Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. Plaintiff was deprived of his constitutional rights when the Defendants utilized unreasonable and excessive force on the minor Plaintiff. Defendants also deprived Plaintiff of his constitutional rights when they caused the unjustifiable arrest of the minor Plaintiff. Further, Defendants deprived Plaintiff of his constitutional rights when they assaulted, battered and unlawfully confined the minor Plaintiff. Finally, Defendant New York City is also liable not only for the violation of constitutional rights, assault, battery and false imprisonment under the doctrine *respondeat superior*, but also liable for negligence in the hiring, training and the failure to investigate its employees, servants or agents acting within the scope of their employment.

### **JURISDICTION**

2. This action is brought pursuant to 42 U.S.C. §§1983 and 1988, and the Fourth Amendment and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343 (3) and (4) and the aforementioned statutory and constitutional provisions.

### **VENUE**

4. Venue is proper for the United States District Court for the Eastern District of New York pursuant to 28 U.S.C. § 1391, (a), (b) and (c) and § 1402 (b) because the claims arose in this district.

### **PARTIES**

5. The Plaintiff is a minor under 18 years of age, represented herein by his natural guardian Alice Wilson. The Plaintiff was eleven years old at the time of the incident and is a citizen of the United States and is and was at all times relevant herein a resident of Brooklyn, New York.

6. The Plaintiff's natural guardian is Alice Wilson who is a citizen of the United States and is and was at all times relevant herein a resident of Brooklyn, New York.

7. At all times relevant hereto, Police Sergeant Astras, Shield # 177 was acting in the capacity of agent, servant and employee of Defendant City of New York [hereinafter "City"], and within the scope of his employment as such. Police Sergeant Astras is being sued herein in his individual capacity.

8. At all times relevant hereto, Police Officer Ponzi, Shield # 21249, was acting in the capacity of agent, servant, and employee of Defendant City, and within the scope of his employment as such. Police Officer Ponzi is being sued herein in his individual capacity.

9. At all times relevant hereto, Police Officer John Doe, was acting in the capacity of agent, servant and employee of Defendant City, and within the scope of his employment as such. Officer Doe is being sued herein in his individual capacity.

10. At all times relevant herein, the individual Defendants, Police Sergeant Astras, Police Officer Ponzi and Officer Doe, were acting under color of state law in the course and scope of their duty and functioned as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duty. Officer Defendants were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agent of the New York City Police Department.

11. Defendant City is municipality organized and existing under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision and conduct of all NYPD personnel. In addition, at all relevant times, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

**STATEMENT OF FACTS**

12. Plaintiff's grandmother and legal guardian is Alice Wilson. She is bringing this claim on behalf of the minor T.S.

13. The incident occurred on April 26, 2010 in the vicinity of 79 Lorraine Street, Apt 4A, Brooklyn, New York, 11231. At the time the Plaintiff was eleven years old.

14. At approximately 4:00 P.M. the Plaintiff accompanied one friend to get food at a local restaurant. After arriving at the restaurant, shortly thereafter, four other young boys of similar age arrived carrying a fake rubber acorn.

15. Two boys named J. and A.\* began to throw the fake rubber acorn back and forth between them. A. threw the acorn and accidentally hit a woman. The woman subsequently threatened to call the police.

16. Shortly thereafter three police officers arrived. During this time the Plaintiff was inside a store. When the Plaintiff exited from the store a tall white male police officer quickly took physical hold of him.

17. When the Officer Defendant physically grabbed the Plaintiff, he did so by grabbing the Plaintiff by the neck and throwing him up against the hard plastic shelf of a protruding window on the side of the building. The Plaintiff received a bruise on the side of the head as result of the force.

18. Shortly thereafter, the police handcuffed the Plaintiff and several of the other boys.

19. At or around that same time, the woman who had been hit by the rubber acorn identified A., not the Plaintiff, as the one responsible for throwing the rubber acorn.

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\* Initials used for privacy reasons because they may be juveniles

20. Despite having no reason to arrest the Plaintiff, the police nonetheless arrested and took the Plaintiff to the 76th Precinct and detained him for approximately four hours. During that four-hour period, while at the precinct waiting for his mother, Niger Croskey, and legal guardian, Alice Wilson, police officers detained the Plaintiff by handcuffing him to a chair.

21. In addition to the physical injuries described above, Plaintiff also suffered from emotional trauma as a direct result of the incident, as well has pain and bruising on his head and neck. As a direct and proximate result of the unlawful arrest and excessive force Plaintiff suffered and/or continues to suffer from extreme physical pain and suffering; medical expenses; psychological pain, suffering, and mental anguish; other losses.

22. Shortly after the incident, the NYPD sent a letter acknowledging that the Plaintiff was detained, taken to the precinct and issued a juvenile report.

23. A notice of claim was served on the Comptroller of the City of New York and at least thirty days have elapsed since the service of such notice and adjustment and/or payment has been neglected and/or refused.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiffs Rights under § 1983, U.S. Constitution, and Fourth and Fourteenth Amendments**

24. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 23 with the same force and effect as if more fully set forth at length herein.

25. By reason of the foregoing, in handcuffing and grabbing the Plaintiff by the neck and then subsequently pushing him with enough force against a plastic brick to cause bruising on his forehead, the Officer Defendants, without justification, used unreasonable and excessive force

against the Plaintiff and/or failed to prevent other officers from doing so and thereby deprived Plaintiff of his rights, remedies, privileges and immunities guaranteed by the Fourth and Fourteenth Amendments of the United States Constitution and laws of the United States in violation of 42 U.S.C. §1983.

26. The Officer Defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD officers.

27. The Officer Defendants acted beyond the scope of their jurisdiction, without authority of law and abused their powers.

28. The Officer Defendants acted willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights secured by the Fourth Amendment and Fourteenth Amendments to the United States Constitution and laws of the United States in violation of 42 U.S.C. §1983.

29. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before alleged.

## **SECOND CAUSE OF ACTION**

### **Violation of Plaintiff's Rights under § 1983, U.S. Constitution, Fourth and Fourteenth Amendments**

30. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth at length herein.

31. By falsely arresting Plaintiff without probable cause and holding him under arrest for an extended and unreasonable period of time, or by detaining the Plaintiff without reasonable

suspicion for an extended and unreasonable period of time, and/or failing to prevent other officers from doing so, the Officer Defendants deprived Plaintiff of his rights, remedies, privileges and immunities guaranteed by the Fourth and Fourteenth Amendments of the United States Constitution and laws of the United States in violation of 42 U.S.C. §1983.

32. The Officer Defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers.

33. The Officer Defendants acted beyond the scope of their jurisdiction, without authority of law, and abused their powers.

34. The Officer Defendants acted willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights secured by the Fourth and Fourteenth Amendment to the United States Constitution and laws of the United States in violation of 42 U.S.C. §1983.

35. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before alleged.

### **THIRD CAUSE OF ACTION**

#### **Municipal Liability Claim Against the City of New York For Failure to Properly Hire, Train, Supervise and Discipline Employees**

36. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. Individual Defendants' use of excessive force, unlawful arrest and detention without probable cause comprised a violation of Plaintiff's civil right to be free of such actions under the Fourth Amendment to the Constitution.

38. Individual Defendants' use of excessive force, unlawful arrest and detention without probable cause was pursuant to custom, practices, policy or uses of Defendant, the City through the NYPD.

39. Upon information and belief, Defendant City failed to discipline Officer Defendants for their use of excessive force against the Plaintiff.

40. Upon information and belief, Defendant City failed to discipline Officer Defendants for the unlawful seizure and confinement of Plaintiff.

41. Under this custom, usage, practice or policy, The City:

- (a) encouraged and/or condoned the use of excessive force, unlawful arrest and detention without probable cause;
- (b) encouraged and/or condoned the practice of using excessive force, detaining individuals without probable cause and falsely accusing and arresting individuals;
- (c) failed to adequately screen applicants to the NYPD;
- (d) failed to investigate, or punish the excessive use of force, false arrest and unlawful detentions by the NYPD;
- (e) failed to provide adequate training to its NYPD regarding the use of force with children, the constitutional limits of force with children, the proper use of weapons including handcuffs and the proper method of detaining and arresting children.



#### **FOURTH CAUSE OF ACTION**

##### **Assault**

42. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff and that such act(s) caused apprehension of such contact in the Plaintiff.

44. By reason of the foregoing, and by grabbing the Plaintiff by the neck and pushing his head against a protruding hard plastic shelf with such force that he sustained injuries to his head and by assaulting and battering Plaintiff while in custody at the precinct, the Officer Defendants committed the torts of assault and/or failed to prevent other officers from doing so.

45. The assault and battery by the Officer Defendants was unnecessary and unwarranted in the performance of their duties as NYPD Officers and constituted an unreasonable use of force.

46. The Officer Defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD officers.

47. The Officer Defendants acted beyond the scope of their jurisdiction, without authority of law and abused their powers.

48. Defendants, their officers, agents, servants and employees were responsible for the assault on the Plaintiff. Defendant City, as employer of each of the Officer Defendants, is

responsible for their wrongdoing under the doctrine of *respondeat superior*.

49. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before alleged.

## **FIFTH CAUSE OF ACTION**

### **Battery**

50. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff or failed to prevent other officers from doing so, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such act(s) caused apprehension of such contact in the Plaintiff.

52. By reason of the foregoing, and by grabbing the Plaintiff by the neck and pushing his head against a wall with such force that he sustained injuries to his head, and assaulting and battering him while he was in custody, Defendants committed the torts of battery and/or failed to prevent other officers from doing so.

53. Defendant Officers were at all times agents, servants and employees acting within the scope of their employment by the City and the NYPD, which are therefore responsible for their conduct.

54. Defendants, their officers, agents, servants and employees were responsible for the battery of the Plaintiff. Defendant City, as employer of each of the Officer Defendants, is

responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before alleged.

56. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

## **SIXTH CAUSE OF ACTION**

### **False Arrest**

57. Plaintiff repeats and realleges paragraphs 1 through 56 as if the same were fully set forth at length herein.

58. The Officer Defendants wrongfully and illegally arrested and imprisoned Plaintiff and/or failed to prevent other officers from doing so.

59. The wrongful, unjustifiable and unlawful arrest and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent and without probable cause or reasonable suspicion.

60. The Officer Defendants further falsely arrested and imprisoned Plaintiff when they held him in custody for an extended and unreasonable period of time after.

61. At all relevant times the Officer Defendants acted forcibly in arresting and imprisoning Plaintiff

62. At all relevant times Plaintiff was unlawfully detained, wrongfully and unjustifiably arrested, deprived of his liberty and imprisoned.

63. At all times mentioned, the unlawful, wrongful and false imprisonment of Plaintiff was without right and without cause.

64. All of the foregoing occurred without any fault or provocation on the part of Plaintiff

65. Defendants, their officers, agents, servants and employees were responsible for Plaintiff's arrest and imprisonment during this period of time.

66. The Officer Defendants acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable and flagrant disregard of Plaintiff's rights and are guilty of egregious and gross misconduct towards the Plaintiff.

67. Officer Defendants were at all times agents, servants and employees acting within the scope of their employment by the City and the NYPD, which are therefore responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. Pursuant to 28 U.S.C. §1367 this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

69. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before alleged.

### **SEVENTH CAUSE OF ACTION**

#### **Negligent Hiring, Retention, Training and Supervision**

70. Plaintiff repeats and realleges paragraphs 1 through 69 as if the same were fully set forth at length herein.

71. Upon information and belief, Defendant City, through the NYPD, owed a duty of care to Plaintiff to prevent his unlawful arrest and prevent the use of excessive and unreasonable force against him.

72. Upon information and belief, Defendant City, through the NYPD, owed a duty of care to Plaintiff because under the same or similar circumstances, a reasonable, prudent and careful

person should have anticipated that an injury to the Plaintiff, or to those in a like situation, would probably result from this conduct.

73. Upon information and belief, the Officer Defendants were unfit and incompetent for their positions.

74. Upon information and belief, Defendant City, through the NYPD, knew or should have known through the exercise of reasonable diligence that the Officer Defendants had a propensity to commit the misconduct that caused Plaintiff's injuries.

75. Upon information and belief, Defendant City's negligence in hiring and retaining the Officer Defendants proximately caused Plaintiff's injuries.

#### **JURY DEMAND**

76. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

#### **PRAYER FOR RELIEF**

WHEREFORE, Plaintiff prays for relief as follows:

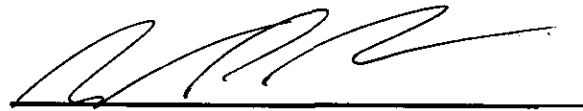
That the jury find and the Court adjudge and decree that Plaintiffs T.S. shall recover compensatory damages in the sum of \$5,000,000 against the individual Defendants, Police Sergeant Astras, Police Officer Ponzi, Police Officer John Doe and the City, jointly and severally, together with interest and costs; and punitive damages in the sum of \$2,000,000 against the individual Defendants, jointly and severally.

a. That the Plaintiff recovers the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. §1988.

b. That the Plaintiff has such other and further relief as the Court shall deem just and

proper.

DATED: August 25, 2010  
New York, New York

A handwritten signature in black ink, appearing to read 'R. Reyes', is written over a horizontal line.

RICHARD P. REYES, ESQ. (RR 8457)  
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